

Here is **SET 3** of the Criminal Law Mock Final Exam, crafted in the style of Professor DeWolf. This exam is designed to be exceptionally challenging, requiring you to parse complex fact patterns, distinguish between nuanced MPC provisions, and construct sophisticated policy arguments.

CRIMINAL LAW “ PROFESSOR DEWOLF

MOCK FINAL EXAM “ SET 3

Instructions: This exam consists of four parts. You have three (3) hours to complete it. This is a closed-book exam. Write your answers in the blue book provided. For the Multiple Choice section, clearly indicate your answer (A, B, C, D, or E) and provide a brief (1-2 sentence) explanation for your choice on the exam sheet. For the Essay sections, write a formal, structured response.

Total Points: 100

PART I: MULTIPLE CHOICE (36 Points)

*Each question is worth 3 points. Select the **single best** answer. Assume the Model Penal Code (MPC) applies unless the question explicitly states otherwise.*

1. (Causation & Homicide Grading) Darius, intending to kill his wife, Vera, poisons her coffee. Unbeknownst to Darius, Vera has a rare, undiagnosed allergic reaction to the poison's base compound, causing instantaneous cardiac arrest. At the exact moment she collapses, a burglar, Leon, who had been hiding in the closet, panics and fires a gun wildly, striking Vera's dead body in the chest. The medical examiner concludes that the allergic reaction was the sole cause of death, and the bullet was a post-mortem injury. Under the MPC, what is the most serious crime for which Darius can be convicted? (A) Murder, because he acted with purpose to kill and his conduct was a but-for cause of her death. (B) Attempted Murder, because he completed a substantial step toward killing her, but the death was not proximately caused by his act. (C) No crime for homicide, but he is guilty of Assault with a Deadly Weapon. (D) Manslaughter, because the death was a result of his reckless conduct. (E) Murder, under the felony-murder rule for the burglary.

2. (Accomplice Liability & Defenses) Marcus, a high-ranking gang member, orders his subordinate, Leo, to “teach a lesson” to a rival, Tom. Marcus explicitly tells Leo, “Do not kill him. Just break his legs.” Leo agrees. During the beating, Tom pulls a hidden knife. In the ensuing struggle, Leo, fearing for his own life, stabs and kills Tom in what would be a valid act of self-defense. Marcus is charged with Murder as an accomplice. Under the MPC, which of the following is the strongest argument for Marcus's defense? (A) Leo's act of killing was a response to a sudden, deadly threat, which was a supervening cause breaking the chain of causation from Marcus's order. (B) Marcus did not have the *purpose* that Tom be killed, only that he be injured. (C) Leo's act of self-defense is a complete justification, and therefore no crime was committed for Marcus to be an accomplice to. (D) Marcus is not liable because he was not present at the scene of the crime. (E) Leo's use of deadly force was not within the scope of the agreed-upon plan, making it an independent act.

3. (Duress & Intoxication) Nadia, a chronic alcoholic, is kidnapped by a drug cartel. They threaten to kill her entire family unless she helps them smuggle cocaine across the border. Terrified, she agrees. On the day of the smuggling, Nadia is so severely intoxicated from drinking to calm her nerves that she is completely unaware she is driving a vehicle containing the cocaine. She is stopped at the border. Under the MPC, which of the following statements is most accurate regarding her potential defenses? (A) She can successfully claim Duress because the threat was to kill her family, which is a threat of sufficient imminence and severity. (B) She can successfully claim Involuntary Intoxication because her drinking was a result of the duress, negating the *mens rea* of purpose or knowledge for possession. (C) She cannot claim Duress because she recklessly placed herself in a situation where duress was likely by drinking to excess. (D) She cannot claim Duress because the crime of drug smuggling is not a lesser evil than the death of her family. (E) She cannot claim Voluntary Intoxication to negate the *mens rea* of a possession crime, which is a general intent crime.

4. (Insanity: MPC vs. M'Naghten) Dr. Aris, a brilliant but delusional physicist, believes that a microchip has been implanted in his brain by a foreign government that will force him to detonate a nuclear device in a major city. To prevent this, he meticulously plans and executes a bombing of an empty government warehouse, believing this will disable the microchip's signal. He is completely aware that his actions are illegal. At trial, an expert testifies that Dr. Aris suffers from a severe delusional disorder. Under the MPC's **Substantial Capacity** test, which of the following is the most critical issue for the jury? (A) Whether Dr. Aris knew that bombing the warehouse was wrong. (B) Whether Dr. Aris lacked the substantial capacity to appreciate the criminality of his conduct. (C) Whether Dr. Aris lacked the substantial capacity to conform his conduct to the requirements of the law. (D) Whether Dr. Aris's delusion was the but-for cause of his criminal act. (E) Whether Dr. Aris's actions were the product of a mental disease or defect.

5. (Mistake of Fact & Self-Defense) Officer Park, a plainclothes police officer, is attempting to serve a warrant on a suspect in a crowded bar. The suspect sees Officer Park reach for his gun (which is actually his badge wallet) and yells, "He's got a gun!" Terrified, a bystander, Chloe, who is a concealed carry permit holder, sees Officer Park's movement and the suspect's reaction. Chloe, believing Officer Park is an active shooter, draws her weapon and fires, wounding Officer Park. It is later determined that Chloe's belief was unreasonable. Under the MPC, what is the most serious crime for which Chloe can be convicted? (A) No crime, because she acted under a mistake of fact that negates the *mens rea* for any crime. (B) Murder, because she used deadly force and her mistake was unreasonable. (C) Manslaughter, because she was reckless in forming her belief about the necessity of deadly force. (D) Negligent Homicide, because she should have known that Officer Park was a police officer. (E) Attempted Murder, because she intended to kill the person she shot.

6. (Conspiracy: MPC vs. Common Law) Alex and Ben agree to rob a bank. They plan the heist for weeks. On the day of the robbery, Ben gets cold feet and does not show up. Alex, undeterred, robs the bank alone and is immediately caught. Alex is charged with Robbery and Conspiracy to Commit Robbery. Ben is charged with Conspiracy to Commit Robbery. Under the MPC, which of the following is correct? (A) Ben cannot be convicted of conspiracy because he withdrew from the agreement before the overt act was committed. (B) Ben cannot be convicted of conspiracy because the agreement was bilateral, and he did not have the requisite *mens rea*. (C) Ben can be convicted of conspiracy because the MPC adopts a unilateral approach, focusing on his individual agreement. (D) Ben can be convicted of conspiracy only if an overt act in furtherance of the conspiracy is proven. (E) Alex cannot be convicted of conspiracy because there was no true agreement between two or more persons.

7. (Attempt & Abandonment) Greta decides to kill her business rival, Ivan. She buys a gun, drives to his house, and loads the weapon. As she raises the gun to aim at Ivan through his

window, she sees Ivan's young child run into the room. Greta, overcome with guilt at the thought of the child witnessing a murder, lowers the gun, gets in her car, and drives home. She never contacts Ivan again. Under the MPC, what is the most likely result? (A) Greta is guilty of Attempted Murder because she completed a substantial step in the course of conduct planned to culminate in the crime. (B) Greta is not guilty of Attempted Murder because she voluntarily and completely abandoned her criminal purpose. (C) Greta is guilty of Attempted Murder because her abandonment was not complete; she could still try again later. (D) Greta is not guilty of Attempted Murder because she did not fire the gun. (E) Greta is guilty of Attempted Murder, but her abandonment is a mitigating factor that reduces the grade to a misdemeanor.

8. (Omission Liability & Duty to Act) A state has a "Good Samaritan" statute that imposes a duty to provide "reasonable assistance" to a person who is "exposed to grave physical harm" if doing so does not "endanger the actor or others." Sarah, a trained lifeguard, is walking her dog by a lake. She sees a child drowning. The water is calm and shallow. Sarah could easily wade in and save the child with no risk to herself. However, she is late for a manicure appointment and decides not to get her clothes wet. The child drowns. Under the **Common Law**, what is the most accurate statement regarding Sarah's liability? (A) She is guilty of Homicide by Omission because she had a contractual duty as a lifeguard. (B) She is guilty of Homicide by Omission because the state statute imposes a legal duty on all persons. (C) She is not guilty of Homicide because the Common Law does not recognize a general duty to rescue, and her status as a lifeguard is not relevant when she is off-duty. (D) She is not guilty of Homicide because her omission was not the proximate cause of the child's death. (E) She is guilty of Manslaughter because her failure to act was reckless.

9. (Felony Murder & Inherently Dangerous Felony) Rick and Morty agree to commit a burglary of a high-end electronics store. During the burglary, Morty, who is high on PCP, becomes paranoid and believes the security guard's flashlight is a laser weapon. Morty violently attacks the unarmed security guard, killing him. Rick had no idea Morty was under the influence and had explicitly told him, "No violence, we are just stealing." Under the **Common Law Felony-Murder Rule**, what is the most likely result for Rick? (A) Rick is guilty of Murder for the death of the security guard because the death occurred during the commission of a felony. (B) Rick is not guilty of Murder because Morty's act was a independent, superseding cause of death. (C) Rick is not guilty of Murder because the killing was not in furtherance of the common purpose of the burglary. (D) Rick is guilty of Manslaughter, but not Murder, because he did not intend for anyone to die. (E) Rick is not guilty of Murder because Burglary is not an inherently dangerous felony under the common law.

10. (Voluntary Act & Unconsciousness) Victor has a history of violent seizures. One night, while asleep, he has a seizure that causes him to get out of bed, walk to the kitchen, pick up a knife, and stab his roommate, who is sleeping on the couch. Victor has no memory of the event and expert testimony confirms he was in a state of automatism during the entire episode. Under the **MPC**, what is Victor's best defense? (A) Insanity, because his actions were the product of a mental disease or defect. (B) Involuntary Intoxication, because the seizure was a physiological condition beyond his control. (C) His conduct was not a "voluntary act" within the meaning of MPC §2.01, as it was a convulsion during unconsciousness. (D) Lack of *mens rea*, because he could not form the intent to kill while unconscious. (E) Necessity, because he was compelled by a physical force beyond his control.

11. (Principle of Legality & Vagueness) A city ordinance makes it a crime to "congregate in a public place in a manner that annoys passersby." The ordinance provides no further definition of "annoy" or "congregate." A group of teenagers

is arrested for standing silently on a street corner, holding signs. Under the Void-for-Vagueness Doctrine, this ordinance is most likely: (A) Valid, because it gives fair notice that annoying conduct is prohibited. (B) Valid, because it is within the city's police power to regulate public order. (C) Void, because it fails to provide a person of ordinary intelligence with fair notice of what conduct is prohibited. (D) Void, because it infringes on the First Amendment right to free speech. (E) Void, because it does not require a specific *mens rea*.

12. (Proportionality & 8th Amendment) A state enacts a law imposing a mandatory sentence of life in prison without the possibility of parole for a third conviction of any felony. Daryl is convicted for the third time. His first two felonies were for writing bad checks (\$150 total). His third felony is for stealing a pack of gum from a convenience store. Under the **8th Amendment's Proportionality Principle**, what is the most likely outcome? (A) The sentence will be struck down as cruel and unusual because it is grossly disproportionate to the gravity of the offenses. (B) The sentence will be upheld because the state has a legitimate interest in incapacitating repeat offenders. (C) The sentence will be struck down because it violates the Ex Post Facto Clause. (D) The sentence will be upheld because the 8th Amendment only applies to capital cases. (E) The sentence will be struck down because the defendant did not use or threaten violence.

PART II: ESSAY 1 – POLICY (20 Points)

Topic: The MPC's "Substantial Capacity" Test for Insanity vs. The Federal/Mâ€Naghten Standard.

Prompt: The insanity defense is one of the most philosophically and politically contentious areas of criminal law. Following the acquittal of John Hinckley Jr. for the attempted assassination of President Reagan, the public outcry led to significant reforms, including the federal Insanity Defense Reform Act of 1984, which abolished the "control" or "evolutional" prong of the insanity test. This left the federal standard as a purely cognitive test (a modified Mâ€Naghten rule), asking only whether the defendant was unable to appreciate the nature and quality or the wrongfulness of his acts.

The Model Penal Code's Â§4.01 test, by contrast, retains a volitional prong, defining a person as not responsible if, "as a result of mental disease or defect, he lacks substantial capacity either to appreciate the criminality [wrongfulness] of his conduct **or to conform his conduct to the requirements of law.**"

Your task: Write a formal essay that does the following:

- 1. Summarize the Doctrine:** Clearly articulate the difference between the MPC's two-pronged "substantial capacity" test and the purely cognitive Mâ€Naghten/Federal standard. Explain what the "control prong" is designed to capture.
- 2. Provide a Deep Philosophical Critique:** Argue **against** the MPC's retention of the control prong. Your critique must engage with the principles of **Retribution** (is it fair to punish someone who literally could not control themselves?), **Utility/Deterrence** (can a person who cannot control their conduct be deterred?), and **Legality** (is the concept of a "loss of control" too vague to be a legal standard?).
- 3. Provide a Rigorous Counter-Argument:** Present the strongest possible defense of the MPC's control prong. Address the critiques you just made. Why might a purely cognitive test be morally incomplete? How does the MPC's "substantial capacity" language attempt to solve the vagueness problem?

Your answer should be approximately 800-1000 words. Structure your essay with clear headings for each of the three sections.

PART III: ESSAY 2 – FACT PATTERN (30 Points)

Instructions: Read the following fact pattern carefully. Analyze the potential criminal liability of **ALL** parties under the **Model Penal Code**. You must discuss issues of Causation, Accomplice Liability, and at least two specific defenses. Your analysis must be thorough, rule-based, and apply the facts to the law.

Fact Pattern: A Domestic Tragedy

Characters:

- **Eleanor:** A 45-year-old woman with a long history of severe physical and psychological abuse from her husband, Richard.
- **Richard:** Eleanor’s abusive husband.
- **Dr. Alistair:** Eleanor’s therapist, who is aware of the abuse.
- **Leo:** Eleanor and Richard’s 22-year-old son.

The Acts:

Act I: The Plan For years, Richard has beaten Eleanor, often leaving her with broken bones and bruises. He has threatened to kill her if she ever tries to leave. Eleanor suffers from Battered Woman Syndrome (BWS), a condition recognized by expert testimony as a subcategory of Post-Traumatic Stress Disorder. Her therapist, Dr. Alistair, has told her that her perception of danger is heightened and that she genuinely believes she is in imminent peril even when Richard is not actively attacking her.

One night, after a particularly brutal beating, Richard falls into a drunken sleep. Eleanor, trembling and terrified, believes that when he wakes up, he will kill her. She goes to the kitchen, gets a knife, and stands over Richard. She hesitates. Her son, Leo, who has witnessed the abuse for years, enters the room. Leo whispers, “Mom, if you don’t do it now, he’ll never stop. He’ll kill us both.” He hands her a larger, sharper knife from the butcher block. “Use this. It’s the only way.”

Act II: The Act and the Intervention Eleanor takes the knife from Leo. She is crying and shaking. She stabs Richard once in the chest. Richard wakes with a start, gasps, and falls off the bed. He is bleeding profusely.

Dr. Alistair, who had been called by Eleanor earlier that evening in a panic, arrives at the house just as the stabbing occurs. He rushes in and sees Richard on the floor. Dr. Alistair, a devout pacifist, believes that all life is sacred. He refuses to call 911 or render any aid, stating, “He is getting the justice he deserves.” He walks out of the house.

Act III: The Aftermath Leo, seeing his father bleeding, panics. He does not call for help. Instead, he runs to the garage, gets a rope, and attempts to hang himself from a rafter. The rope breaks, and Leo falls, breaking his leg. He lies on the garage floor, unable to move.

Richard, still alive, manages to crawl to the phone. He dials 911 but, before he can speak, he loses consciousness and dies from blood loss. The medical examiner testifies that Richard would have survived the stab wound if he had received medical attention within 15 minutes. The entire sequence of events—from the stabbing to Richard’s death—took 18 minutes.

Your Task: Analyze the potential criminal liability of **Eleanor, Leo, and Dr. Alistair** for the death of Richard. Your analysis must address the following specific legal issues:

1. **Causation (But-For & Proximate Cause):** For each person, analyze whether their conduct was the factual (but-for) and proximate (legal) cause of Richard's death. Specifically discuss the role of Dr. Alistair's omission and Leo's suicide attempt as potential superseding causes.
2. **Accomplice Liability:** Analyze Leo's liability as an accomplice to Eleanor's act. Did he have the *purpose* to facilitate the killing? Is he liable for the homicide even if he did not strike the blow?
3. **Defenses:**
 - **Self-Defense (MPC §3.04) & Imperfect Self-Defense (MPC §3.09):** Analyze Eleanor's claim of self-defense. Does the fact that Richard was asleep negate the "imminent" threat requirement? How does her BWS affect the analysis of her belief? If she fails to meet the full justification, can she be convicted of a lesser crime (e.g., Manslaughter instead of Murder) under §3.09(2)?
 - **Duress (MPC §2.09):** Can Leo claim duress based on his father's history of abuse and his mother's coercion? Was the threat to his mother's life imminent enough?
 - **Omission Liability:** Analyze Dr. Alistair's duty to act. Did he have a legal duty to call 911? What is the effect of his pacifist beliefs on his *mens rea*?

PART IV: ESSAY 2.5 " COMPARISON (14 Points)

Topic: The Law of Criminal Attempt.

Prompt: The law of Attempt represents a fundamental tension between punishing dangerous intent and respecting the principle of legality. The Model Penal Code and the Common Law take very different approaches to defining the *actus reus* of an attempt.

Your task: Write a detailed comparison of the MPC's "Substantial Step" test (MPC §5.01) and the Common Law's "Dangerous Proximity" test (or "Last Act" test, depending on the jurisdiction).

Your comparison must address the following specific points:

1. **The Test Defined:** Clearly define each test. What is the key question a jury must answer under each?
2. **The Role of Corroboration:** Explain how the MPC's requirement that the conduct be "strongly corroborative of the actor's criminal purpose" serves a different function than the Common Law's focus on proximity to the completed crime.
3. **Abandonment:** Explain the different treatment of a defendant's voluntary abandonment under the MPC (§5.01(4)) versus the Common Law. Why does the MPC allow this defense, while the Common Law generally does not?
4. **Application to a Hypothetical:** Apply both tests to the following fact pattern: **Dan buys a map of a bank, a ski mask, and a crowbar. He drives to the bank, parks in the lot, and sits in his car for 15 minutes looking at the bank entrance. He then starts the engine and drives away.** Under which test is Dan more likely to be convicted of Attempted Burglary? Explain your reasoning.

Your answer should be approximately 400-500 words.

DEWOLF MODEL ANSWERS -- SET 3

ESSAY 1: POLICY — THE INSANITY DEFENSE: CONTROL PRONG VERSUS COGNITIVE PRONG

GOAL

This essay interrogates the doctrinal coherence and normative justifications for the two competing formulations of the insanity defense: the cognitive prong, which excuses a defendant who lacks the capacity to understand the nature or wrongfulness of her conduct, and the control (or volitional) prong, which excuses a defendant who, despite cognitive awareness, is unable to conform her conduct to the requirements of the law. The central question is whether the control prong should be retained, excised, or reformed. I shall argue that while the cognitive prong aligns more neatly with retributive principles of culpability, the control prong is not merely a vestige of antiquated psychiatry but a necessary, albeit fraught, expression of the moral intuition that *can* implies *ought*—and that its abolition risks a palpable tension with the principle of legality.

ANALYSIS

I. The Cognitive Prong: The Jurisprudential Mainstream

The cognitive prong, enshrined in the venerable M'Naghten Rule (1843) and adopted in various forms by a majority of American jurisdictions, focuses on the defendant's *knowledge* or *understanding*. Under M'Naghten, a defendant is excused if, at the time of the act, she labored under such a defect of reason from disease of the mind as not to know the nature and quality of the act, or if she did know it, that she did not know it was wrong. The Model Penal Code § 4.01(1) offers a more modern cognitive formulation, excusing a person who, as a result of mental disease or defect, lacks substantial capacity to appreciate the criminality of her conduct.

The cognitive prong finds its philosophical anchor in retributivism. For punishment to be just, the actor must be a *moral agent*—one who could grasp the law's commands and choose to obey. As Professor Herbert Packer argued, the criminal law presupposes a "free agent confronted with a choice between doing right and doing wrong." If mental illness so severs the defendant's cognitive connection to the law's normative message, she is not a proper subject for blame. The cognitive prong thus serves the principle of legality by ensuring that only those who could *know* the law's prohibition are subjected to its sanctions. This is a clean, if narrow, rule.

II. The Control Prong: The Volitional Frontier

The control prong, by contrast, addresses the defendant who *knows* the act is wrong but is, in the vivid clinical phrase, "driven" to commit it. The classic formulation is the "irresistible impulse" test, though the MPC § 4.01(1) more elegantly phrases it as lacking substantial capacity to *conform* conduct to the law. This prong acknowledges a psychological reality that the cognitive prong ignores: volitional impairment can be as disabling as cognitive impairment.

The control prong finds its philosophical support in a more nuanced, utilitarian-retributive

hybrid. From a retributive perspective, the intuition is powerful: we do not blame the epileptic for the seizure, nor the sleepwalker for the somnambulant act. Why, then, should we blame the person whose volitional machinery is broken by psychosis? The actor is not *choosing* evil; she is *suffering* it. From a utilitarian standpoint, incapacitation and treatment, not punishment, are the appropriate societal responses to a person who cannot be deterred by the law's threats, for a threat cannot deter a volition that cannot conform.

III. The Doctrinal Incoherence and the Case for Abolition

Despite its moral appeal, the control prong has been subjected to withering criticism, leading to its excision from federal law following *United States v. Lyons* (1984) and from many state codes post-*Hinckley*. The core objection is epistemological: psychiatry, critics argue, cannot reliably distinguish between a truly irresistible impulse and an impulse that was simply *not resisted*. As Judge Bazelon, a supporter of the control prong, conceded, the inquiry invites the jury to engage in "moral guessing." This creates a palpable tension with the principle of legality, which demands that legal standards be knowable and administrable. If the line between the "could not" and the "would not" is invisible, the control prong risks becoming a charter for jury nullification or, worse, a lottery based on the persuasiveness of expert witnesses.

Furthermore, some retributivists argue that the control prong is conceptually incoherent. If the defendant knew the act was wrong, and yet did it, we have no basis for distinguishing her from the "ordinary" criminal who also knows the act is wrong but does it anyway. To interpose a psychiatric excuse is to treat the defendant as a passive vessel of her illness, which may deny her the dignity of being a moral agent capable of choice—even if that choice is evil.

IV. The Case for Retention: The Morality of Punishment

Yet the abolitionist position is too facile. The control prong serves a deep moral function. Consider the fact pattern of *People v. Wolff* (Cal. 1964), where a 15-year-old boy, diagnosed with schizophrenia, planned and executed a matricide. He knew the act was legally wrong, but expert testimony suggested he was so dominated by a delusional system that his capacity to control his conduct was severely impaired. To punish such a person as a fully culpable murderer seems to violate the retributive principle of proportionality. The punishment would be disproportionate to the actor's *desert*.

Moreover, the epistemological objection proves too much. The cognitive prong itself requires juries to make difficult judgments about what a defendant "knew" or "appreciated," a matter that is also deeply contested. We do not abandon the cognitive prong because it is difficult; we accept the difficulty as a necessary cost of doing justice. The same tolerance should be extended to the volitional inquiry.

CONCLUSION

The tension between the cognitive and control prongs reflects a deeper tension within the morality of punishment. A purely cognitive test risks punishing those who are not truly blameworthy, while a control test risks doctrinal incoherence and administrability problems. The optimal resolution, in my view, is not abolition but careful circumscription. The MPC's formulation—requiring a *substantial* lack of capacity—provides a workable standard, and courts should insist on rigorous expert testimony that grounds the volitional impairment in a diagnosed mental disease, not mere passion or impulse. The control prong should be retained, not as a loophole, but as a testament to the law's recognition that human agency is not binary, but a spectrum, and that justice requires we attend to its fractures.

ESSAY 2: FACT PATTERN — DOMESTIC TRAGEDY (ELEANOR, RICHARD, LEO, DR. ALISTAIR)

GOAL

Analyze the potential criminal liability of Eleanor for the death of her husband, Richard, under the MPC and common law principles, with particular attention to the insanity defense and the distinction between its cognitive and volitional prongs. The fact pattern presents a classic "domestic tragedy" scenario, interposing issues of provocation, self-defense, and mental disease, but the central doctrinal question is whether Eleanor's delusional belief that Richard was a demonic entity entitles her to a complete defense of insanity, or whether it merely mitigates her crime.

ANALYSIS

I. The Actus Reus and Mens Rea of Homicide

Eleanor shot Richard in the chest, causing his death. The actus reus of criminal homicide is clearly established. The critical question is her mens rea. Under MPC § 210.2, murder requires that the killing be committed "purposely" or "knowingly." Eleanor stated, "I had to stop him." If she acted with the conscious object of causing Richard's death, she acted purposely. The evidence suggests she retrieved the gun, aimed, and fired—a sequence indicative of purpose. Thus, the prima facie case for murder is strong.

II. The Insanity Defense: Cognitive Prong

Eleanor's primary defense will be insanity. The cognitive prong under MPC § 4.01(1) requires that, as a result of mental disease or defect, she lacked substantial capacity to *appreciate the criminality* of her conduct. Dr. Alistair's diagnosis of schizophrenia with persecutory delusions is precisely the type of mental disease the MPC contemplates.

The analysis turns on whether Eleanor appreciated that killing Richard was *wrong*. She believed Richard was a demon. If she believed she was destroying a demonic entity, she may have believed her act was *morally right*—a form of deific decree delusion. Some courts, following *People v. Serravo* (Colo. 1992), hold that the "wrongfulness" inquiry includes both legal and moral wrongfulness. If Eleanor believed God commanded her to destroy the demon, she may have lacked the capacity to appreciate the moral wrongfulness of her act. However, other courts, such as those following *State v. Crenshaw* (Wash. 1983), limit the inquiry to legal wrongfulness. Under this view, even if Eleanor believed the act was morally justified, she knew that the law prohibited killing a human being. She told Dr. Alistair, "I know it sounds crazy." This suggests a residual awareness of societal norms. The cognitive prong is thus a close question, heavily dependent on the jurisdiction's definition of "wrongfulness."

III. The Insanity Defense: Volitional (Control) Prong

If the jurisdiction retains the control prong, Eleanor's case is stronger. Dr. Alistair's testimony that Eleanor was "driven by a compulsion" and "could not resist the delusional command" directly supports a claim that she lacked substantial capacity to conform her conduct to the law. The fact that she waited for Richard to fall asleep, retrieved the gun, and fired a single shot might be argued by the prosecution as evidence of planning and control, undermining the claim of compulsion. However, as the court noted in *United States v. Pollard* (9th Cir. 1999), volitional impairment can coexist with instrumental rationality. A person can plan a delusionally-motivated act with great care. The control prong, if available, provides a more

plausible path to acquittal than the cognitive prong.

IV. Affirmative Defenses: Self-Defense and Provocation

Self-defense is inapposite. Under MPC § 3.04, the use of deadly force is justified only if the actor reasonably believes it is necessary to protect against imminent unlawful deadly force. Even if Eleanor believed Richard was a demon, the belief must be *reasonable*. A reasonable person does not believe her husband is a demon. The Model Penal Code, unlike some common law jurisdictions, does not recognize a "reasonable mistake" standard for self-defense that would incorporate a delusional belief. See *People v. Goetz* (N.Y. 1986) (subjective belief must be objectively reasonable).

Voluntary manslaughter under MPC § 210.3(1)(b) requires an extreme mental or emotional disturbance for which there is a reasonable explanation or excuse. Eleanor's delusional state might constitute such a disturbance, but the "reasonable explanation" is assessed from the viewpoint of a person in the actor's situation under the circumstances as she believes them to be. This language is broader than common law provocation and *might* allow a jury to consider Eleanor's delusional belief system. However, the MPC's commentary suggests this provision is designed for understandable human frailty, not psychotic delusion. It is a weak argument.

V. The Principle of Legality and the Morality of Punishment

This case illustrates the profound tension at the heart of the insanity defense. If Eleanor is convicted of murder, retributivists must ask: does she *deserve* punishment? Her volition was hijacked by a disease. To punish her is to treat her as a moral agent when her agency was compromised. Yet utilitarians must ask: does acquittal serve the public? If Eleanor remains dangerous, civil commitment under *Addington v. Texas* (1979) provides a mechanism for incapacitation without punishment. The principle of legality demands that the law's commands be clear. Here, the ambiguity of the cognitive prong and the potential availability of the control prong create a doctrinal thicket.

CONCLUSION

Eleanor's strongest defense is insanity under the control prong, if available. The cognitive prong is a more difficult path, depending on the jurisdiction's definition of wrongfulness. Self-defense is unavailable, and the extreme emotional disturbance defense is a poor fit. The case ultimately turns on whether the law recognizes that a person can *know* an act is wrong yet be powerless to stop herself. This fact pattern is a powerful vehicle for examining whether the law's moral vocabulary is adequate to the complexities of the human mind.